



**Department of
Administrative
Services**

Anti-Discrimination and Anti-Harassment Policy and Reporting Procedures (HR-14)

State of Ohio Administrative Policy

No: HR-14 - State Human Resources Division

Effective: November 3, 2023

Issued By: Kathleen C. Madden, Director

I. Purpose

The State of Ohio is a diverse, inclusive, and equal opportunity employer. The purpose of this policy is to emphasize that **Discrimination**, **Harassment**, and/or **Retaliation** will not be tolerated in the workplace and to establish procedures for state employees and applicants for state employment to report claims of Discrimination, Harassment, and Retaliation. The first occurrence of a defined term in the policy is in bold, italic type, and is hyperlinked to the definition in Section IV.

II. Scope

This policy applies to all state agencies, boards, and commissions under the authority of the Governor (collectively referred to as Agency or Agencies).

III. Policy

The State of Ohio is an Equal Employment Opportunity (EEO) employer and does not discriminate on the basis of **Race**, color, religion, gender/sex, gender identity or expression, national origin (ancestry), military status (past, present, or future), disability, age (40 years of age or older), genetic information, sexual orientation, status as a parent during pregnancy and immediately after the birth of a child, status as a nursing mother, status as a parent of a young child, or status as a foster parent as those terms are defined in applicable Ohio law, federal law and any Executive Order, when making any of the following employment-related decisions including, but not limited to hiring, layoff, transfer, termination, promotion, demotion, discipline, rate of compensation, eligibility for in-service training programs, or terms and conditions of employment.

Moreover, no Agency may retaliate against anyone who exercises a protected right under state EEO policy or applicable EEO laws, including making a complaint or participating in an investigation.

A. Procedures for Reporting Violations of State and Agency EEO Policies

Any employee or applicant for employment who believes that he or she is a victim of Discrimination, Harassment, or Retaliation based on a protected class as outlined in state or agency EEO Policies should report the incident(s) to any or all of the following:

1. The employee's supervisor
2. The Agency EEO Officer
3. The Department of Administrative Services, State Human Resources Division, Office of Opportunity and Accessibility (O&A)

1. Reporting violations of state and Agency EEO policies with O&A can be done at [Department of Administrative Services - Ohio.gov](https://das.ohio.gov). This filing must occur no later than thirty (30) days from the date of the last alleged discriminatory incident. Reporting incidents of EEO policy violation(s) to the Agency EEO Officer should be done pursuant to the Agency's internal EEO policy and procedures. Additional legal filing rights through the Ohio Civil Rights Commission (OCRC) and the Equal Employment Opportunity Commission (EEOC) are outlined in section D of this policy.

2. In addition to making a report as outlined above, an employee or applicant who believes that he or she has been subject to Discrimination, Harassment, and/or retaliation is encouraged to inform the potential discriminator, harasser, or retaliator that the conduct is unwanted or unwelcome, through direct or indirect means as soon as practical and safe.

3. As part of the complaint process, employees may have an individual represent or assist them in the process, including a union representative if applicable.

B. Responsibility

1. Manager/Supervisor: A manager/supervisor is responsible for ensuring the work-environment managed/supervised is free from Discrimination and Harassment.

Managers/Supervisors must not retaliate against employees who exercise their rights as outlined in State or Agency EEO policy or protected by law.

A manager/supervisor who receives a report of Discrimination, Harassment, or Retaliation must immediately report the complaint to the Agency EEO officer. While the report cannot be kept strictly confidential, the information reported shall only be communicated as necessary to investigate and take appropriate action.

2. Employees: Employees shall assist in the Agency's effort to achieve equal employment opportunity and to maintain a Discrimination and Harassment free environment. It is everyone's responsibility to maintain a workplace free from Discrimination and/or Harassment. Employees are encouraged to speak up if Discrimination or Harassment is occurring in the work environment by reporting the incident to the Agency EEO officer.

3. Agency EEO Officer: The Agency EEO officer will counsel aggrieved employees or applicants, providing them with information about the Agency's EEO policy, including filing rights. The Agency EEO officer will also attempt informal resolution of the issue, including through human resources.

The Agency EEO officer will conduct a prompt, thorough, and objective investigation of complaints, that includes interviews of witnesses and review of relevant documents as required by Ohio Administrative Code (OAC) Chapter 123:1-49. While the information obtained cannot be kept strictly confidential, the information reported shall only be communicated as necessary to investigate and take appropriate action.

4. Agency: Each Agency will promote equal employment opportunity and maintain a work environment free from Discrimination and Harassment. Under the guidance of O&A, Agencies shall develop internal policies and procedures for reporting Discrimination, Harassment, and/or Retaliation aligned with their Agency structure and adopt the definition of **Antisemitism** in compliance with Executive Order 2022-06D and the definition of Race in compliance with this policy in reviewing, investigating, or deciding if there has been Discrimination, Harassment, and/or Retaliation. Agencies will also consider the definition of Race in this policy in evaluating dress code or similar policies. However, nothing in this policy prohibits an Agency from enforcing rules related to safety in the

workplace.

Each Agency is responsible for providing this statewide policy and their Agency's specific EEO policy to employees upon hire and covering both policies during onboarding.

Agencies should also make this and Agency EEO policies readily available for employees to access, and ensure management and employees review the policies annually.

C. Consequences of Violation

Discrimination, Harassment and Retaliation will not be tolerated. Such conduct is subject to discipline, up to and including termination. Managers/supervisors are advised that they may be subject to personal liability for acts of Discrimination, Harassment, and/or Retaliation that occur under their authority or outside the scope of identified job duties and may be responsible for providing their own legal defense.

D. Additional Filing Rights

This policy is not intended to be a complete statement of federal and/or state law, or an employees' rights regarding Discrimination, Harassment, and/or Retaliation under the law. An employee may seek the counsel of an attorney for questions regarding the law and their legal rights.

In addition to the reporting procedures contained in section A of this policy, an employee or applicant for state employment who believes they have experienced Discrimination, Harassment and/or Retaliation may also report the incident to one or both of the following external entities:

1. Ohio Civil Rights Commission (OCRC): Filing with OCRC can be done by calling 614-466-2785 or 1-888-278-7101, by visiting [Ohio Civil Rights Commission - Ohio.gov](https://ohio.gov/ocrc) or by mail to: 30 East Broad Street, Fifth Floor, Columbus, Ohio 43215 or regional office. This filing must occur no later than two (2) years from the date of the alleged discriminatory incident; or
2. Federal Equal Employment Opportunity Commission (EEOC): Filing with the EEOC can be done by calling (800) 669-4000, visiting [Home - U.S. Equal Employment Opportunity Commission](https://www.eeoc.gov) or by mail: 1240 East 9th Street, Suite 3001, Cleveland, Ohio 44199. The filing must occur no later than three hundred (300) days from the date of the last alleged discriminatory incident.

E. Training Requirements

1. All employees shall complete the EEO/Anti-Sexual Harassment Training annually. New hires shall complete the EEO/Anti-Sexual Harassment Training after hire, in accordance with each Agency's orientation and onboarding process.

2. All employees shall complete the Disability Etiquette and Awareness training annually and new hires shall complete it after hire, in accordance with HR-54, Disability Inclusion and Accessibility for State of Ohio Employees and Applicants.

IV. Definitions

1. Antisemitism (Back) : A certain perception of Jews, which may be expressed as hatred toward Jews. Rhetorical and physical manifestations of Antisemitism are directed toward Jewish or non-Jewish individuals and/or their property, toward Jewish community institutions and religious facilities.
2. Discrimination (Back) : Discrimination occurs when an employment action is taken based on the employee or applicants' status as a member of a protected class. There are two forms of Discrimination:
 1. Disparate Treatment: Disparate treatment occurs when an employer intentionally treats an employee differently because of their protected class.
 2. Disparate Impact: Disparate impact occurs when an employment policy, although neutral on its face, adversely impacts persons in a protected class.
3. Harassment (Back) : Unwelcome conduct based on a protected class. Harassment becomes unlawful where:
 1. enduring the offensive conduct becomes a condition of continued employment (quid pro quo), or
 2. the conduct is severe or pervasive enough to create a work environment that a reasonable person would consider intimidating, hostile, or abusive (hostile work environment). Harassment can be verbal and/or physical and can include name calling, slurs, jokes, gestures, leering, stalking, grabbing, and/or assault. This is not an exhaustive list of all harassing behaviors.
4. Race (Back) : Includes traits associated with an individual's Race, or perceived Race, including hair texture and protective hair styles, such as braids, locks, and twists, color, and facial features.
5. Retaliation (Back) : The act of punishing an employee or applicant for asserting their rights to be free from employment Discrimination or Harassment under EEO laws or policy. This includes Retaliation against an individual who requested an accommodation; filed, testified, or participated in a Discrimination investigation, proceeding or lawsuit; or opposed employment practices that they reasonably believed discriminate against individuals.

V. Authority

ORC 124.04

OAC 123:1-49

Executive Order 2019-05D; Executive Order 2022-06D; Executive Order 2023-01D

VI. Resources

- [Your Rights Under EEO - Department of Administrative Services \(ohio.gov\)](#).

VII. Inquiries

Direct inquiries about this policy to:

Labor Relations and Human Resources Policy Section

Office of Collective Bargaining

Ohio Department of Administrative Services

4200 Surface Road

Columbus, Ohio 43228

614.752.5393 | DASHRD.HRPolicy@das.ohio.gov

Office of Opportunity and Accessibility

State Human Resources Division

Ohio Department of Administrative Services

30 E. Broad Street, 40th Floor

Columbus, Ohio 43215

614.466.7313 | OandA@das.ohio.gov

State of Ohio Administrative Policies may be found online at [Policy Finder - Department of Administrative Services](#)

VIII. Revision History

Date	Description of Change
12/14/2011	Last issue date.
08/30/2019	Reissued in compliance with Executive Order 2019-05D.
04/26/2022	Reissued in conjunction with Executive Order 2022-06D.
01/09/2023	Reissued in conjunction with Executive Order 2023-01D.
11/03/2023	Reissued policy with revised definition of race, training requirements, and in new statewide policy template.